

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[833 NE2d 192, 800 NYS2d 49]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JERRY W.
MOORE, Respondent.

Argued April 14, 2005; decided June 7, 2005

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Erie County Court (Michael L. D’Amico, J.), entered April 27, 2004. The County Court affirmed an order of the Buffalo City Court (David M. Manz, J.), which had granted defendant’s motions to dismiss informations charging him with criminal trespass in the third degree and harassment in the second degree.

HEADNOTE

Crimes — Criminal Trespass — Third Degree

A person is guilty of criminal trespass in the third degree when he knowingly enters or remains unlawfully in a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders (Penal Law § 140.10 [a]). The statute, as amended by Laws of 1987 (ch 192) to include the fenced or enclosed language, requires that both buildings and real property be fenced or enclosed in order to increase the level of culpability from trespass to criminal trespass in the third degree. This reading is consistent with the general scheme of Penal Law article 140. Accordingly, an information charging defendant with criminal trespass in the third degree was properly dismissed as facially insufficient where defendant was charged with entering a public building located on the college campus, allegedly in violation of a “persona non grata” letter issued by school officials barring defendant from the campus. The information and supporting deposition failed to allege facts establishing that the building defendant entered was fenced or enclosed.

APPEARANCES OF COUNSEL

Frank J. Clark, District Attorney, Buffalo (J. Michael Marion of counsel), for appellant.

Mary P. Walek, Buffalo, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the County Court should be affirmed.

As relevant here, defendant was charged with criminal trespass in the third degree (*see* Penal Law § 140.10 [a]). According to the information, defendant entered a public building located on the campus of the State University of New York at Buffalo on September 4, 2002. This conduct allegedly violated a “*persona non grata*” letter, issued on June 11, 1999 and again on November 28, 2000 by school officials, barring defendant from the campus. The supporting deposition describes a verbal exchange with a university employee. City Court granted defendant’s motion to dismiss the information as jurisdictionally defective because it did not set forth every element of criminal trespass in the third degree, and County Court affirmed. A Judge of this Court granted leave to appeal and we now affirm.*

The Penal Law provides that “[a] person is guilty of criminal trespass in the third degree when he knowingly enters or remains unlawfully in a building or upon real property (a) which is fenced or otherwise enclosed in a manner designed to exclude intruders” (Penal Law § 140.10 [a]). Although previous versions of the statute contained nearly identical language, the “fenced or otherwise enclosed” requirement was not contained in a separate subdivision until the statute was amended in 1987 (L 1987, ch 192). Prior to the amendment, the statute had apparently been interpreted so that knowingly entering or remaining unlawfully in any building—fenced or unfenced—constituted criminal trespass in the third degree, as did knowingly entering or remaining unlawfully upon real property which was fenced or otherwise enclosed in a manner to exclude intruders. Under the prior statute, “the building was not required to be fenced or otherwise enclosed” (Donnino, Practice Commentary, McKinney’s Cons Laws of NY, Book 39, Penal Law art 140, at 13). The plain language of the statute as amended, however, clearly requires that both buildings and real property be fenced or otherwise enclosed in order to increase the level of culpability from trespass (*see* Penal Law § 140.05) to criminal trespass

* As we hold that the information is defective for failure to specify every element of the crime of criminal trespass in the third degree, we need not determine whether the “*persona non grata*” letter is a lawful order within the meaning of Penal Law § 140.00 (5).

in the third degree. The 1987 amendment thus narrowed the definition of criminal trespass in the third degree to require one of several enumerated conditions to be present.

This reading is consistent with the general scheme of article 140 of the Penal Law. Starting with the violation of trespass (*see* Penal Law § 140.05), the crimes become progressively more serious as they approach criminal trespass in the first degree (*see* Penal Law § 140.17). Since the violation of trespass requires only that a person “knowingly enters or remains unlawfully in or upon premises” (Penal Law § 140.05), which includes buildings (*see* Penal Law § 140.00 [1]), section 140.10 (a) is properly interpreted as requiring the additional aggravating element that the building or area entered be fenced or otherwise enclosed in order to exclude intruders to elevate the crime from a violation to a class B misdemeanor.

The remaining subdivisions of section 140.10 also support this interpretation of the statute. If knowingly entering or remaining unlawfully in any building were sufficient to establish third-degree criminal trespass, it would be unnecessary to include the further enumerated aggravating elements for trespass in particular buildings, such as elementary and secondary schools or public housing projects (*see* Penal Law § 140.10 [b]-[f]), and both trespass and third-degree criminal trespass would be committed by the identical conduct of knowingly entering or remaining unlawfully in an unfenced or unenclosed building.

“[A]n information which fails to contain nonhearsay allegations establishing ‘if true, every element of the offense charged and the defendant’s commission thereof’ . . . is fatally defective” (*People v Alejandro*, 70 NY2d 133, 136 [1987] [internal citation omitted]). Since the information and supporting deposition here fail to allege facts establishing that the campus building defendant entered into was in any way “fenced or otherwise enclosed in a manner designed to exclude intruders” (Penal Law § 140.10 [a])—a required element of the crime—it was insufficient to establish criminal trespass in the third degree (*see* CPL 100.15 [3]; 100.40 [1] [c]). Thus, the information was properly dismissed as facially insufficient.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed in a memorandum.

In the Matter of MICHAEL BURRESS, Appellant, v RICHARD DENNISON, as Acting Chairman of the New York State Division of Parole, Respondent.

Submitted April 11, 2005; decided June 7, 2005

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

COUNTRY WIDE INSURANCE COMPANY, Appellant, et al., Plaintiffs,
v NATIONAL RAILROAD PASSENGER CORPORATION, Also
Known as AMTRAK, Respondent.

Submitted February 14, 2005; decided June 7, 2005

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.17 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.17), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH.

In the Matter of MICHAEL H. FEINBERG, a Judge of the Surrogate's Court, Kings County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted May 16, 2005; decided June 7, 2005

Motion by the Surrogate's Association of the State of New York for leave to file a brief amicus curiae on the request for review herein granted and the proposed brief is accepted as filed.

EDUARD LLESHANAKU et al., Appellants, v KENMORE ASSOCIATES, L.P., et al., Respondents.

Submitted April 18, 2005; decided June 7, 2005

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Divi-

sion where the appeal to the Appellate Division was from an order entered in an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v FAYE DUNN, Respondent.

Submitted May 9, 2005; decided June 7, 2005

Reported below, 2 AD3d 747.

Motion for assignment of counsel granted and Steven Feldman, Esq., 626 EAB Plaza, West Tower, 6th Floor, Uniondale, New York 11556 assigned nunc pro tunc as counsel to the respondent on the appeal herein [*see* 4 NY3d 495].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CALVIN MOORE, Appellant.

Submitted May 23, 2005; decided June 7, 2005

Reported below, 13 AD3d 395.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MATTHEW WALDRON, Appellant.

Submitted May 31, 2005; decided June 7, 2005

Reported below, 13 AD3d 1074.

Motion for substitution of assigned counsel granted and David J. Wukitsch, Esq., care of McNamee Lochner Titus & Williams, P.C., 75 State Street, P.O. Box 459, Albany, New York 12201 is assigned in the place and stead of J. Scott Porter, Esq., as counsel to the appellant on the appeal herein.

MARJORIE ROSENKRANTZ, Appellant, v HARRIET M. STEINBERG, P.C., et al., Respondents.

Submitted March 7, 2005; decided June 7, 2005

Reported below, 13 AD3d 88.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that denied appellant's motion to amend her complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

JILL SHULER et al., Appellants, v LARRY DUPREE et al., Respondents.

Submitted April 11, 2005; decided June 7, 2005

Reported below, 14 AD3d 548.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

STICHTING TER BEHARTIGING VAN DE BELANGEN VAN OUDAANDEELHOUDERS IN HET KAPITAAL VAN SAYBOLT INTERNATIONAL B.V., Appellant-Respondent, v PHILIPPE S.E. SCHREIBER et al., Respondents-Appellants, et al., Defendants, et al., Third-Party Defendant.

Submitted February 22, 2005; decided June 7, 2005

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.17 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.17), accepted and the issues presented are to be considered after briefing and argument.

Concur: Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH. Taking no part: Chief Judge KAYE.

KIM WILLIAMS et al., Respondents, v RACHEL LECHASE et al., Appellants, and BIBBY ELECTRIC, Respondent.

Submitted March 14, 2005; decided June 7, 2005

Reported below, 15 AD3d 988, 989.

Motion, insofar as it seeks leave to appeal as against Bibby Electric, denied; motion, insofar as it seeks leave to appeal as

against the plaintiffs, dismissed upon the ground that as to them, the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

[832 NE2d 1186, 799 NYS2d 770]

AMARNAUTH OUTAR et al., Respondents, v CITY OF NEW YORK,
Appellant.

Decided June 9, 2005

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 18, 2004. The Appellate Division modified, on the law, a judgment of the Supreme Court, Kings County (Leon Ruchelsman, J.), entered upon a jury verdict in favor of plaintiffs, which, insofar as appealed from, had awarded plaintiff subway track worker damages in the principal sum of \$4,945,793 for future lost wages, future lost Social Security benefits, and future lost pension benefits and \$10,101 for past lost Social Security benefits. The modification consisted of deleting the provision awarding plaintiff damages in the principal sum of \$4,945,793 for future lost wages, future lost Social Security benefits and future lost pension benefits and substituting therefore a provision awarding plaintiff damages in the principal sum of \$4,305,743 for future lost wages, future lost Social Security benefits, and future lost pension benefits and deleting the provision thereof awarding plaintiff damages in the principal sum of \$10,101 for past lost Social Security benefits and substituting therefor a provision awarding him damages in the amount of \$0 for past lost Social Security benefits. The appeal brings up for review a prior nonfinal order of the Appellate Division, entered September 10, 2001 (286 AD2d 671 [2001]). The Appellate Division had modified, on the law, an order of the Supreme Court, Kings County (Bruno, J.), which, insofar as appealed from, had denied plaintiffs' motion for summary judgment on the issue of liability on their Labor Law § 240 (1) cause of action and granted defendant's cross motion for summary judgment dismissing the complaint. The modification consisted of granting plaintiffs' motion and denying defendant's cross motion.

The injured plaintiff was hurt while working on subway tracks, alleging that he was lifting pieces of track when an unsecured dolly fell from a height and struck him.

Outar v City of New York, 11 AD3d 593, affirmed.

HEADNOTE

Labor — Safe Place to Work — Falling Object — Unsecured Dolly

In an action to recover damages for injuries sustained by plaintiff subway track worker when he was struck by a falling unsecured dolly, the elevation differential between the dolly and plaintiff was sufficient to trigger Labor Law § 240 (1) protection, and the dolly was an object that required securing for the purposes of the undertaking.

APPEARANCES OF COUNSEL

Wallace D. Gossett, Brooklyn (*Lawrence A. Silver* of counsel), for appellant.

Lawrence P. Biondi, New York City, for respondents.

Fiedelman & McGaw, Jericho (*Jeanne A. Cygan*, *Andrew Zajac*, *Dawn C. DeSimone*, *Elizabeth Anne Bannon* and *Rona Platt* of counsel), for Defense Association of New York, Inc., amicus curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs. The elevation differential between the dolly and plaintiff was sufficient to trigger Labor Law § 240 (1)'s protection, and the dolly was an object that required securing for the purposes of the undertaking (*cf. Narducci v Manhasset Bay Assoc.*, 96 NY2d 259, 268 [2001]).

Concur: Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH.

[833 NE2d 695, 800 NYS2d 360]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v NORRIS
WILLIAMS, Respondent.

Argued April 28, 2005; decided June 9, 2005

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an

order of that Court, entered July 29, 2004. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (John E.H. Stackhouse, J.), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in or near school grounds and criminal sale of a controlled substance in the third degree, and (2) ordered a new trial.

People v Williams, 10 AD3d 213, affirmed.

HEADNOTE

Crimes — Instructions

In defendant's prosecution for selling heroin to an undercover police officer in which the People failed to call as a witness the "ghost" member of the undercover team to corroborate a detective's identification testimony, the trial court erroneously instructed the jurors that they were not to speculate on the nonappearance of persons allegedly at the crime scene, or what they might have said if they would have come. The defense's central theme was that the one-witness identification was entirely uncorroborated and therefore unreliable. Defendant was entitled to argue that the jurors should consider the People's failure to call the ghost officer for corroboration in support of his defense that the People's evidence was uncorroborated and "skeletal." For the trial court to charge the jury that it may not consider the absence of uncalled witnesses who were mentioned as being present at the alleged crime scene effectively deprived defendant of the force of his defense and may have misled the jurors to believe that they were not permitted to draw any inferences from the absence of the ghost officer at trial. This error was not harmless.

APPEARANCES OF COUNSEL

Robert M. Morgenthau, District Attorney, New York City (*Madeleine Guilmain* and *Mark Dwyer* of counsel), for appellant.

Center for Appellate Litigation, New York City (*Robert S. Dean* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant allegedly sold two glassine envelopes of heroin to an undercover police officer during a buy-and-bust operation. The operation involved three officers—one undercover officer who purchased drugs from defendant, one undercover officer who observed the sale (the "ghost") and an arresting officer, who did not see the drug exchange. At trial, the People presented only two witnesses. The arresting officer acknowledged that he had not seen the drug sale, nor had he seen defendant before arresting him. The purchasing officer testified that the

individual from whom he bought drugs was wearing a distinctive blue and white flowered hat, but no such hat was inventoried, nor was it in defendant's arrest photograph. Further, the police recovered neither prerecorded buy money nor any drug stash from defendant. Despite his alleged presence at the crime scene, the ghost officer did not testify.

At the charge conference, defendant requested that a portion of the judge's proposed charge instructing jurors not to speculate about what evidence could have been presented not be given to the jury. According to defense counsel, such an instruction would "conflict with the concept that [the jurors are] to consider evidence or *lack of evidence*" (emphasis added). Agreeing that the instruction "might mislead the jury," the trial judge told the parties that he would not give it.

In his summation, defense counsel argued that the People's case was "skeletal," pointing to the prosecution's failure to introduce any evidence to corroborate the testimony of the single identifying witness—no prerecorded buy money, no blue and white flowered hat, no photograph of the defendant wearing the hat and, despite the alleged presence of the ghost officer at the time of the drug sale, no testimony from that second undercover. After summations, and despite his earlier ruling, the judge gave the charge to which defense counsel had objected, telling the jurors that they were not to "speculate on the whereabouts of people whose names are mentioned as having been at the alleged scene of the crime who were not called as witnesses. No one is required to come to court and testify. Don't speculate on their non-appearance, or what they might have said if they would have come."

We agree with the Appellate Division majority that, in the context of this case, the instruction was error, "given that the central theme of the defense at trial was that the one-witness identification was entirely uncorroborated and therefore unreliable, the effect of the court's charge was essentially to instruct the jury not to consider the defense" (10 AD3d 213, 217 [1st Dept 2004]).

A defendant not necessarily entitled to a missing witness charge may nonetheless try to persuade the jury to draw inferences from the People's failure to call an available witness with material, noncumulative information about the case (*People v Tankleff*, 84 NY2d 992, 994-995 [1994]). Defendant was entitled to argue that the jurors should consider the People's failure to call the ghost officer to corroborate the single-witness identifica-

tion in support of his defense that the People's evidence was uncorroborated and "skeletal." For the trial court to charge the jury both that it may not consider the absence of uncalled witnesses who were mentioned as being present at the alleged crime scene effectively deprived defendant of the force of his defense and may have misled the jurors to believe that they were not permitted to draw any inferences from the absence of the ghost officer at trial. On this record, we cannot say the error was harmless (*see People v Kello*, 96 NY2d 740 [2001]).

Defendant additionally argues that the trial court's *sua sponte* decision to allow the undercover officer to testify anonymously—despite the prosecutor's statement that she was not making such a request—was reversible error. In light of our decision as to the jury instruction, we need not reach this issue.

R.S. SMITH, J. (concurring). I cannot agree that Supreme Court's charge was flawed. The court instructed the jury to "decide this case solely on the basis of the evidence or lack of evidence actually presented to you in this courtroom, which you actually saw and heard in this courtroom." The court added: "Do not speculate on the whereabouts of people whose names are mentioned as having been at the alleged scene of the crime who were not called as witnesses. No one is required to come to court and testify. Don't speculate on their non-appearance, or what they might have said if they would have come." These were straightforward "do not speculate" instructions, neither wrong in themselves nor likely to mislead the jury in the context of this case. Defendant's counsel, in his summation, barely mentioned the failure of the "ghost" officer to testify, and a reasonable jury would not have understood the court's instructions as an order to disregard counsel's argument.

Since I disagree with the majority on this issue, I reach, as the majority does not, the alternative ground defendant offers to support the Appellate Division's reversal of his conviction. This alternative argument is based on Supreme Court's ruling that the undercover officer who allegedly bought heroin from defendant could testify anonymously. The ruling was made during a colloquy that began when the prosecutor said she would not ask that the courtroom be closed pursuant to *People v Hinton* (31 NY2d 71 [1972]). The colloquy continued:

"MS. WILLIAMS [the prosecutor]: So, my detective will be using his name.

"THE COURT: He will. Okay.

“MS. WILLIAMS: I’m asking if the Court—

“THE COURT: If he wants to; he doesn’t have to. He can use his number, if you’d rather go by number. That’s fine with me.

“MS. WILLIAMS: Okay.

“MR. VERCHICK [defense counsel]: Well, I will object.

“THE COURT: Over the Defense’s objection, he cannot state his name. I think that’s reasonable.”

This ruling clearly violated defendant’s right of confrontation under our decision in *People v Stanard* (42 NY2d 74 [1977]). We held in *Stanard* that a witness may be permitted to remain anonymous only where the prosecution makes “some showing of why the witness should be excused from answering” a question related to his identity. We said that “[e]xcuse may arise from a showing that the question will harass, annoy, humiliate or endanger the witness” (*id.* at 84). Even upon such a showing, anonymity is not granted automatically; the defendant is entitled to show “the materiality of the requested information to the issue of guilt or innocence,” and “the court must engage in a balancing process which compares the rights of the defendant to cross-examination . . . with the interest of the witness in retaining some degree of anonymity” (*id.*). Here, Supreme Court conferred anonymity on the witness sua sponte, although the prosecutor offered to have the witness use his name and did not try to make the showing *Stanard* requires.

The People’s only argument on this branch of the case is that defense counsel’s statement “I will object” was not specific enough to preserve the *Stanard* issue for review. But while we have at times required a more specific objection for preservation purposes (*e.g.*, *People v West*, 56 NY2d 662 [1982]), we have never held that a simple “I object” is always insufficient. Here, where the error was egregious, and where the basis for defendant’s protest should have been obvious, the general objection fulfilled the purpose of the preservation requirement by alerting the trial judge to the error and giving him a chance to avoid it (*cf. People v Vidal*, 26 NY2d 249, 254 [1970]; *People v Payne*, 3 NY3d 266, 273 [2004] [“We decline to . . . elevate preservation to a formality that would bar an appeal even though the trial court . . . had a full opportunity to review the issue in question”])).

Accordingly, I would affirm the Appellate Division’s order on the ground that Supreme Court erred in allowing the undercover officer to testify anonymously.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur; Judge R.S. SMITH concurs in result in an opinion.

Order affirmed in a memorandum.

In the Matter of ELVIN LEBRON, Appellant, v PHILIP V. DONAHUE et al., Respondents.

Submitted May 2, 2005; decided June 9, 2005

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ELVIN LEBRON, Appellant, v SANDRA LEWIS SMITH, as Deputy Commissioner of the New York City Department of Corrections, et al., Respondents.

Submitted May 2, 2005; decided June 9, 2005

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motions for poor person relief dismissed as academic.

In the Matter of LESLIE ANN W., Appellant, v NOAH ALEXANDER B., Respondent.

Submitted May 16, 2005; decided June 9, 2005

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. SANTOS GONZALEZ, Appellant, v WILLIAM E. PHILLIPS, Respondent.

Submitted April 18, 2005; decided June 9, 2005

Motion, insofar as it seeks leave to appeal from the February 2005 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the

meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. TYRONE JACKSON,
Appellant, v FRANK J. TRACEY, as Superintendent of the
Downstate Correctional Facility, Respondent.

Submitted April 25, 2005; decided June 9, 2005

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that denied appellant's motion for poor person relief dismissed upon the ground that such part of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

[833 NE2d 704, 800 NYS2d 369]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES
DANIELS, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BYRON
ROBINSON, Appellant.

Argued April 26, 2005; decided June 14, 2005

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 23, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ronald Zweibel, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree, robbery in the second degree (four counts), rape in the first degree (two counts) and sexual abuse in the first degree, and sentenced defendant, as a persistent felony offender.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 14, 2004. The Appellate Divi-

sion modified, on the law and as a matter of discretion in the interest of justice, a judgment of the Erie County Court (Sheila A. DiTullio, J.), which had convicted defendant, upon a jury verdict, of attempted murder in the first degree (two counts), criminal possession of a weapon in the third degree and reckless endangerment in the first degree (two counts), and sentenced defendant, as a persistent felony offender. The modification consisted of reversing the convictions for attempted murder in the first degree and reckless endangerment in the first degree and ordering a new trial on counts one, two, seven and eight of the indictment.

People v Daniels, 308 AD2d 389, affirmed.

People v Robinson, 8 AD3d 1028, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

Defendants failed to preserve their claims under *Apprendi v New Jersey* (530 US 466 [2000]) seeking to vacate their persistent felony offender sentences (Penal Law § 70.10; CPL 400.20). Even if an *Apprendi* violation may be raised as an unpreserved mode of proceedings error, defendants would not prevail on the merits.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Andrew C. Fine* and *Laura R. Johnson* of counsel), for appellant in the first above-entitled action.

Robert M. Morgenthau, District Attorney, New York City (*Mark Dwyer* of counsel), for respondent in the first above-entitled action.

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Mary Good*, *David C. Schopp* and *Barbara J. Davies* of counsel), for appellant in the second above-entitled action.

Frank J. Clark, District Attorney, Buffalo (*J. Michael Marion* of counsel), for respondent in the second above-entitled action.

Mischel Neuman & Horn, P.C., New York City (*James E. Neuman* of counsel), and *Richard D. Willstatter* for New York State Association of Criminal Defense Lawyers and another, amici curiae in the first and second above-entitled actions.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division in each case should be af-

firmed. Defendants seek to have their persistent felony offender sentences (Penal Law § 70.10; CPL 400.20) vacated. In contrast to *People v Rivera* (5 NY3d 61 [2005]), defendants did not preserve their claims under *Apprendi v New Jersey* (530 US 466 [2000]). The prosecution argues that this failure precludes our review of the issue, while defendants contend that an alleged *Apprendi* violation goes to the mode of proceedings and does not require preservation. Even if an *Apprendi* violation may be raised as an unpreserved mode of proceedings error (see *People v Rosen*, 96 NY2d 329, 335 [2001]), defendants would not prevail on the merits (see *Rivera*).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

In each case: Order affirmed in a memorandum.

[833 NE2d 704, 800 NYS2d 369]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OLIVER
GIOIA WEST, JR., Appellant.

Decided June 14, 2005

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 4, 2004. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (John A.K. Bradley, J.; op 2 Misc 3d 332), which had granted defendant's motion pursuant to CPL 440.20, and vacated his sentence as a persistent felony offender, finding the persistent felony offender statutory scheme unconstitutional, and (2) reinstated defendant's sentence of two concurrent terms of from 15 years to life imprisonment.

People v West, 12 AD3d 152, affirmed.

HEADNOTE

Crimes — Sentence — Persistent Felony Offender

In a criminal action, the issue whether defendant could raise an *Apprendi v New Jersey* (530 US 466 [2000]) argument for the first time on a CPL 440.20 motion to set aside his sentence as a persistent felony offender need not be decided in view of the holding that New York's persistent felony offender statute is constitutional (see *People v Rivera*, 5 NY3d 61 [2005]).

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Jan Hoth* of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (Morie I. Kleinbart of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed. We need not decide whether defendant could raise his *Apprendi v New Jersey* (530 US 466 [2000]) argument for the first time on a motion to set aside his sentence pursuant to CPL 440.20 in view of the Court's holding that New York's persistent felony offender statute is constitutional (*see People v Rivera*, 5 NY3d 61 [2005]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed in a memorandum.

In the Matter of STUART D. BAKER et al., Appellants, v PATRICK A. HEANEY et al., Respondents.

Submitted June 6, 2005; decided June 14, 2005

Reported below, 15 AD3d 577.

Motion by the Suffolk County Village Officials Association, insofar as it seeks leave to file a brief amicus curiae on the motion for leave to appeal herein, granted; motion, insofar as it seeks leave to file a brief amicus curiae on the appeal herein, dismissed as academic.

ROBERT GREAVES, Respondent, v JACLYN BURLINGAME, Appellant.

Submitted April 25, 2005; decided June 14, 2005

Reported below, 12 AD3d 730.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying appellant's motion for reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution;

motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

ROBERT GREAVES, Respondent, v JACLYN BURLINGAME, Appellant, et al., Defendant.

Submitted April 25, 2005; decided June 14, 2005

Reported below, 12 AD3d 730.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALPHONSO LITTLEJOHN, Appellant.

Submitted June 6, 2005; decided June 14, 2005

Reported below, 16 AD3d 599.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies to the Court of Appeals from the order of the Appellate Division denying a motion for a writ of error coram nobis (*see* CPLR 5601, 5602; CPL 450.90).

[833 NE2d 1196, 800 NYS2d 521]

GREAT CANAL REALTY CORP., Respondent, v SENECA INSURANCE COMPANY, INC., Appellant.

Decided June 16, 2005

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 21, 2004. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Debra James, J.), which had denied defendant's motion for summary judgment dismissing the complaint. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as affirmed by this Court, properly made?"

Great Canal Realty Corp. v Seneca Ins. Co., Inc., 13 AD3d 227, reversed.

HEADNOTE

Insurance — Disclaimer of Coverage — Late Notice of Occurrence

Defendant insurer was not required to defend and indemnify plaintiff insured in an underlying personal injury action. Where a liability insurance policy requires that notice of an occurrence be given “as soon as practicable,” such notice must be accorded the carrier within a reasonable period of time. A good-faith belief of nonliability may excuse a failure to give timely notice, provided that belief is reasonable under all the circumstances, and it may be relevant on the issue of reasonableness whether, and to what extent, the insured has inquired into the circumstances of the accident or occurrence. Here, under the facts and circumstances presented, plaintiff failed to raise a triable issue of fact as to whether its delay in giving notice was reasonably founded upon a good-faith belief of nonliability.

APPEARANCES OF COUNSEL

Tese & Milner, New York City (*Michael M. Milner* of counsel), for appellant.

Alexander J. Wulwick, New York City, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, defendant’s motion for summary judgment granted and judgment granted declaring that defendant Seneca Insurance Company is not required to defend and indemnify Great Canal Realty Corp. in the underlying action. The certified question should be answered in the negative.

Where a policy of liability insurance requires that notice of an occurrence be given “as soon as practicable,” such notice must be accorded the carrier within a reasonable period of time (*see Security Mut. Ins. Co. of N.Y. v Acker-Fitzsimons Corp.*, 31 NY2d 436, 441 [1972]). The insured’s failure to satisfy the notice requirement constitutes “a failure to comply with a condition precedent which, as a matter of law, vitiates the contract” (*Argo Corp. v Greater N.Y. Mut. Ins. Co.*, 4 NY3d 332, 339 [2005]). Hence, the carrier need not show prejudice before disclaiming based on the insured’s failure to timely notify it of an occurrence (*see id.*).

We have recognized that there may be circumstances that excuse a failure to give timely notice, such as where the insured has “a good-faith belief of nonliability,” provided that belief is reasonable (*Security Mut. Ins. Co.*, 31 NY2d at 441). But we

have further explained that “the insured’s belief must be reasonable under all the circumstances, and it may be relevant on the issue of reasonableness, whether and to what extent, the insured has inquired into the circumstances of the accident or occurrence” (*id.*; see also *White v City of New York*, 81 NY2d 955, 958 [1993] [stating that, “where a reasonable person could envision liability, that person has a duty to make some inquiry”]). Additionally, the insured bears the burden of establishing the reasonableness of the proffered excuse. Under the facts and circumstances of this case, plaintiff has failed to raise a triable issue of fact as to whether its delay in giving notice was reasonably founded upon a good-faith belief of nonliability.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in memorandum.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order reversed, etc.

GEORGE HEATH, Appellant, v JOHN S. WOJTOWICZ et al.,
Respondents.

Submitted May 2, 2005; decided June 16, 2005

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MARK WILLIAMS,
Appellant, v MICHAEL ALLARD, Acting Superintendent, Gow-
anda Correctional Facility, Respondent.

Submitted May 2, 2005; decided June 16, 2005

Reported below, 15 AD3d 1016.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

MEMORANDA

745

RICHARD B. SACHS, Respondent, v KATAYONE ADELI, Appellant,
et al., Defendants.

Submitted May 31, 2005; decided June 16, 2005

Reported below, 16 AD3d 175.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Cross motion to vacate or modify stay denied.

In the Matter of BENJAMIN SCHUSSLER, Appellant, v STATE
UNIVERSITY OF NEW YORK et al., Respondents.

Submitted April 25, 2005; decided June 16, 2005

Reported below, 16 AD3d 1141.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that dismissed the appeal to that Court from that part of Supreme Court's judgment denying re-argument, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

APPEALS DISMISSED ON CONSTITUTIONAL GROUNDS

Decided June 7, 2005

Vann, Matter of, v Callahan

3d Dept: 16 AD3d 849

Decided June 16, 2005

Minassian v Temares

2d Dept: 16 AD3d 634

**MOTIONS FOR EXTENSION OF TIME TO APPLY
FOR PERMISSION TO APPEAL PURSUANT TO CPL 460.20**

Decided June 9, 2005

People v Barton

3d Dept: 13 AD3d 721

granted